

THE REPUBLIC OF KENYA

LAWS OF KENYA

THE PUBLIC HOLIDAYS ACT

CAP. 110

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Kenya

Public Holidays Act

Cap. 110

Legislation as at 26 April 2024

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Public Holidays Act (Cap. 110)
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PUBLIC HOLIDAYS ACT

CAP. 110

Assented to on 16 October 1912

Commenced on 16 October 1912

[Amended by Public Holidays (Amendment) Act, 1952 (Act No. 47 of 1952) on 5 November 1952]
[Amended by Kenya (Amendment of Laws) (Miscellaneous Amendments) (No. 2) Regulations, 1963 (Legal Notice 604 of 1963) on 1 June 1963]
[Amended by Kenya (Amendment of Laws) (Written Laws) Order, 1963 (Legal Notice 2 of 1964) on 12 December 1963]
[Amended by Kenya (Amendment of Laws) (Miscellaneous Amendments) (No. 2) Order, 1964 (Legal Notice 124 of 1964) on 12 December 1963]
[Amended by The Public Holidays Act - Declaration (Legal Notice 135 of 1964) on 5 May 1964]
[Amended by Public Holidays (Amendment) Act, 1964 (Act No. 34 of 1964) on 1 October 1964]
[Amended by Statute Law (Miscellaneous Amendments) Act, 1966 (Act No. 21 of 1966) on 12 July 1966]
[Amended by Public Holidays Act - Amendment of Schedule (Legal Notice 190 of 1971) on 17 September 1971]
[Amended by Public Holidays (Amendment) Act, 1984 (Act No. 2 of 1984) on 18 May 1984]
[Amended by Public Holidays (Amendment) Act, 1990 (Act No. 9 of 1990) on 14 September 1990]
[Amended by Statute Law (Repeals and Miscellaneous Amendments) Act, 1997 (Act No. 10 of 1997) on 7 November 1997]
[Amended by Assumption of the Office of President Act (Cap. 6C) on 9 March 2013]
[Amended by Statute Law (Miscellaneous Amendments) Act, 2018 (Act No. 18 of 2018) on 18 January 2019]
[Amended by Statute Law (Miscellaneous Amendments) Act, 2020 (Act No. 20 of 2020) on 11 December 2020]
[Revised by 24th Annual Supplement (Legal Notice 221 of 2023) on 31 December 2022]
[Amended by The Statute Law (Miscellaneous Amendments) Act, 2024 (Act No. 3 of 2024) on 26 April 2024]

An Act of Parliament to make provision for public holidays

1. Short title

This Act may be cited as the Public Holidays Act.

2. Public holidays

(1) The days specified in Part I of the Schedule shall in every year be kept as public holidays.

(2) The days specified in Part II of the Schedule shall, in addition to the days specified in Part I thereof, in every year be public holidays for all persons belonging to the Islamic faith.

(3) The days specified in Part III of the Schedule shall, in addition to the days specified in Part I thereof, in every year be public holidays for all persons belonging to the Hindu faith.

(4) The day in any year during which a general election is held following the dissolution of Parliament shall be a public holiday.

(5) The day in any year during which a President-elect is sowrn in shall be a public holiday.

[Act No. 47 of 1952, s. 2, L.N. 604/1963, Sch., Act No. 34 of 1964, s. 2, Act No. 2 of 1984, s. 2, Act No. 9 of 1990, Act No. 10 of 1997, Sch, Act No. 21 of 2012, s. 21.]

3. Alteration or addition of public holiday

The Cabinet Secretary may at any time if he thinks fit, by notice in the *Gazette*, declare any day to be a public holiday either in addition to the days mentioned in the Schedule or in substitution for any of those days and either throughout Kenya or in any sub-county area or part thereof, and thereupon any day so

appointed shall be a public holiday in all respects as if it were a day mentioned in the Schedule, in Kenya or the locality specified in the notice; and where, in any year, any day is so declared to be a public holiday in substitution for any of the days mentioned in the Schedule such latter day shall in such year cease to be a public holiday in Kenya or the locality specified in the notice.

[Act No. 47 of 1952, s. 3, L.N. 604/1963, Sch., L.N. 124/1964, Sch, Act No. 20 of 2020, Sch.]

4. When public holiday falls on a Sunday

Where, in any year, a day in Part I of the Schedule falls on a Sunday, then the first succeeding day, not being a public holiday, shall be a public holiday and the first-mentioned day shall cease to be a public holiday.

[Act No. 2 of 1984, s. 3.]

5. Savings

(1) Notwithstanding the provisions of this Act, the head of a department of the Government may open the offices and premises thereof, and call upon persons employed therein to perform such of their duties as he may require of them, on a public holiday.

(2) The provisions of this Act shall be subject to any written law or individual agreement under which an employee may be required to work on public holidays under specified or agreed conditions as to rates of pay, days off in lieu, or otherwise.

[Act No. 2 of 1984, s. 3.]

6. [Repealed by Act No. 21 of 1966, 1st Sch.]

SCHEDULE [s. 2]

[Act No. 47 of 1952, s. 6, Act No. 34 of 1964, s. 4, L.N. 135/1964, Act No. 21 of 1966, First Sch., L.N. 190/1971, Act No. 2 of 1984, s. 4, Act No. 9 of 1990, Corr. No. 71/1990, Act No. 18 of 2018, Sch, Act No. 20 of 2020, Sch., Act No. 3 of 2024, Sch.]

Part I

New Years Day	1 January
Good Friday	March or April
Easter Monday	March or April
Labour day	1st May
Madaraka Day	1st June
Idd-ul-Fitr	Date depending upon the appearance of the moon
Mazingira Day	10th October

Mashujaa Day	20th October
Jamhuri Day	12th December
Christmas	25th December
Boxing Day	26th December

Part II

Idd-ul-Azha	Date depending upon the appearance of the moon

Part III

Diwali	Date depending upon the appearance of the moon